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File No: EXP202213550

RESOLUTION FOR TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 24, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against MENZIES AVIATION SPAIN S.L. (hereinafter, the respondent), through the Agreement transcribed below:

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File No: EXP202213550

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 14, 2022. The complaint is directed against MENZIES AVIATION SPAIN S.L. with NIF B86102100 (hereinafter, MENZIES). The reasons for the complaint are as follows:

Complaint regarding the receipt of email messages sent to multiple recipients without using the BCC functionality.

Along with the complaint, an email received from the address ***EMAIL.1 on 11/2/2022 is provided, without the BCC functionality, containing an attached Excel file with work shifts, revealing the email addresses of several employees.

It also refers to a similar previous incident, providing a message received from the company apologizing for what happened on 10/15/22, and a harassment message dated 4/12/21, following the sending without BCC, and due to their membership in a union.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent MENZIES, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on December 22, 2022, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On February 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity MENZIES AVIATION SPAIN S.L. is a group parent company established in 2010, and with a (...) in 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic

law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

Article 4.1 of the GDPR defines "personal data" as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or

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various elements inherent to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that person;"

The same article establishes the definition of "processing" as any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure, or destruction;

In the present case, according to the provisions of articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since MENZIES carries out, among other processing activities, the collection, consultation, and use of the following personal data of individuals employed for ramp service management, such as: name, surname, email address, work shifts...

Furthermore, MENZIES carries out this processing activity in its capacity as data controller, as it is the entity that determines the purposes and means of such activity, by virtue of article 4.7 of the GDPR: which defines it as the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union or Member State law determines the purposes and means of processing, the data controller or the specific criteria for its appointment may be established by Union or Member State law;

III

Unfulfilled obligation: "Principle of integrity and confidentiality"

Article 5.1.f) "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

(...)

f) processed in such a manner that ensures an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

This principle assigns to MENZIES, as the data controller, the obligation to prevent unauthorized or unlawful processing of these data, their loss, or destruction. Therefore, it should not process personal data if it is not in a position to guarantee the confidentiality and integrity of these data and to prevent a third party from accessing data that does not concern them, as well as to avoid their loss or destruction. The data controller is obliged to process personal data in such a way as to ensure their confidentiality through the application of appropriate technical or organizational measures.

For a violation of art. 5.1.f) of the GDPR to occur, there must have been a loss of confidentiality or integrity. In the present case, the documentation in the file provides indications of a presumed violation by MENZIES of the provisions of article 5.1.f) of the GDPR, as there was a lack of confidentiality in the processing of personal data, resulting from sending an email with the addresses of up to 48 recipients revealing names and surnames visible to all of them from the address ***EMAIL.1 on November 2, 2022.

The principle of confidentiality aims to prevent unauthorized leaks of personal data by the data subjects. Therefore, in accordance with the evidence currently available in the initiation of sanctioning

procedure, and without prejudice to the outcome of the instruction, it is considered that the known facts could constitute an infringement attributable to MENZIES for violation of article 5.1.f) of the GDPR.

IV

Classification and qualification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of article 5.1.f) of the GDPR could constitute the commission of the infringements classified in article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under articles 5, 6, 7, and 9; (...)”

For the purposes of the limitation period, article 72 “Very serious infringements” of the LOPDGDD indicates:

“1. Based on what is established in article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year limitation period for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in article 5 of Regulation (EU) 2016/679. (...)”

V

Proposal for sanction of Article 5.1.f) of the GDPR

In order to determine the administrative fine to be imposed, the provisions of articles 83.1 and 83.2 of the GDPR must be observed, which state:

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“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered;

b) the intent or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damages suffered by the affected parties;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

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For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

In this case, in light of the possible infringement of Article 5.1 f), the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

According to the indicated provisions, in accordance with the evidence currently available in the initiation of the sanctioning procedure and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the sanctions to be imposed in this case, it is considered appropriate to graduate the sanctions according to the following criteria established by the transcribed provisions:

- Article 83.2.a) of the GDPR: It is considered that the nature of the infringement is serious as it has resulted in an irreparable loss of disposition and control over personal data for the affected parties.

Considering the factors presented, the initial assessment of the fine for the infringement of Article 5.1.f) of the GDPR is TWO THOUSAND euros (€2,000), without prejudice to what results from the instruction of the procedure.

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VI

Unfulfilled Obligation. Security of Processing.

Article 32 "Security of Processing" of the GDPR establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

- b) the ability to ensure the confidentiality, integrity, availability, and permanent resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for the regular verification, evaluation, and assessment of the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.”

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement appropriate technical and organizational measures to ensure the security of the data that are adequate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of probability and severity to the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of technical and organizational measures must be made taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, process.

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of verification (not audit), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention will be paid to the risks presented by the processing of data, as a consequence of the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In the case at hand, MENZIES did not use the procedure for sending emails when addressed to multiple recipients, which consists of using the option provided by the email application through the field known as "blind carbon copy" (BCC), allowing each of the recipients to see the rest of the sending addresses; and, therefore, violating the current regulations on data protection.

Consequently, MENZIES did not have adequate measures in place to ensure the confidentiality, integrity, and availability of the systems and services of the processing.

Therefore, and in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to MENZIES for violation of Article 32 of the GDPR.

VII

Classification and qualification of the infringement of Article 32 of the GDPR

The violation of Article 32 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR in the following terms:

“4. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43.”

In this regard, the LOPDGDD, in its Article 71 “Infringements,” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year statute of limitations:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.” (...)

VIII

Proposal for sanction under Article 32 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the violations of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

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i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the responsible party or the processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In this case, in light of the possible infringement of Article 32 of the GDPR, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

According to the indicated provisions, in accordance with the evidence currently available in the initiation agreement of the sanctioning procedure and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the sanctions to be imposed in this case, it is considered appropriate to graduate the sanctions according to the following criteria established by the transcribed provisions:

- Article 83.2.b GDPR: for negligence in the infringement, given that every data controller must be aware of their duty to foresee adequate technical and organizational measures to protect the security and confidentiality of the personal data they process.

Considering the factors presented, the initial assessment of the fine for the infringement of Article 32 of the GDPR is ONE THOUSAND euros (€1,000), without prejudice to what results from the instruction of the procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against MENZIES AVIATION SPAIN S.L., with NIF B86102100, for the alleged infringement of Article 5.1.f) and Article 32 of the GDPR, classified respectively in Article 83.5 and 83.4 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be: without prejudice to what results from the instruction:

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of €2,000 and for the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of €1,000.

FIFTH: TO NOTIFY this agreement to MENZIES AVIATION SPAIN S.L., with NIF B86102100, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

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If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 2,400.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the total sanction would be set at 2,400.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 1,800.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any administrative action or appeal against the sanction.

For these purposes, in the event of opting for either of them, you must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction indicating which of the two reductions you are opting for or if it is for both.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (2,400.00 euros or 1,800.00 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Likewise, you must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will result in its expiration and, consequently, the filing of actions; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, the notifications sent to you will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure as having been carried out. You are informed that you can identify an email address to this Agency to receive the notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On November 11, 2024, the respondent has proceeded to pay the sanction in the amount of 1,800 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations regarding the opening of

the procedure, entails the renunciation of any administrative action or appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, with a character...

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subsidiary, according to the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202213550, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to MENZIES AVIATION SPAIN S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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